



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY - 3 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12458

EXPIRATION DATE: August 31, 2000

1. GRANTEE: Bimax, Inc.
Cockeysville, MD
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time transportation in commerce of Allyl Alcohol in UN 1A1 drums each having a minimum thickness of no less than 1.0 mm. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(c) in that marking the exemption number on the drums is waived; and § 173.227(c) in that each drum has a minimum thickness of no less than 1.0 mm.
5. BASIS: This emergency exemption is based on the application of Bimax, Inc., dated April 25, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Allyl Alcohol	6.1	UN1098	I Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The packagings are 40 UN1A1 steel drums as prescribed by § 173.227(c) except that the minimum thickness must be at least 1.0 mm. The drums are loaded, blocked and braced within a sealed 20 foot freight container.

b. OPERATIONAL CONTROLS - The one-time transportation of the freight container will originate at the Port of Norfolk, Virginia and terminate at the PAmex plant in Glen Rock, Pennsylvania.

8. SPECIAL PROVISIONS:

a. The drums may not be stacked within the freight container.

b. MARKING - The marking requirements of § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

b. The transportation must be by contract carrier motor vehicle in exclusive use for this shipment.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

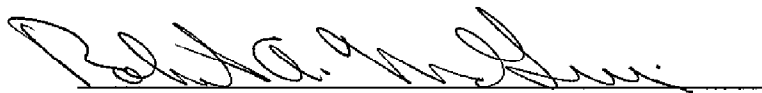
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM